



# Iran: Legal Status of Religious Minorities

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# Iran: Legal Status of Religious Minorities

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**SUMMARY** The Islamic Republic of Iran, as established following the 1979 Islamic Revolution, is an Islamic theocracy. The Constitution of the Islamic Republic recognizes Islam, Judaism, and Christianity, as well as Zoroastrianism, and encourages participation of their members in politics and society to the extent that this participation is not considered threatening to the Islamic Republic. The constitution and major laws emphasize the dominance of Islam and Muslims in all spheres of public life. Under Iranian law, converting from Islam is considered apostasy and can result in severe punishments, including the death penalty. Religious minorities possess certain codified rights, but the legislators have prohibited non-Muslims from being guardians of Muslim children, non-Muslim men from marrying Muslim women, and non-Muslims from inheriting from Muslims. Non-Muslims also do not receive the same forms of redress for certain harms as Muslims receive. Members of religious minorities cannot receive equal retribution for some crimes or take senior governmental, military, or high public managerial positions. Established rights of constitutionally recognized religious minorities are reserved and protected to a significantly higher degree than those of members of unrecognized minorities, which include those who convert from Islam or speak against the Islamic Republic's interpretations of Islam.

## I. Religious Minorities under Iranian Law

According to the Constitution of the Islamic Republic of Iran, “color, race, language, and the like” must not bestow any privilege.<sup>1</sup> The provision does not specify religion as one of the prohibited bases for discrimination, and the phrase “and the like” has not been interpreted by Iranian jurists to include religion. While Iranian law regards constitutionally recognized non-Muslims as persons who are protected under international treaties that Iran has signed and ratified, and under other domestic laws<sup>2</sup>—mainly article 13 of the constitution—Islamic jurisprudence as interpreted by Iranian Islamic jurists considers non-Muslims, including constitutionally recognized non-Muslims, as unbelievers in Islam (*kafir*). Therefore, Iranian law, in numerous places, has considered what it has vaguely presumed as “superiority” in religious faith as a ground for validating important civil rights—for example, testimony<sup>3</sup>—and it has clearly and openly discriminated on the basis of religion in such matters as inheritance, financial retribution, and blood money (*diyya*).<sup>4</sup> Generally, when the law is silent or vague, there is room for judges and

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<sup>1</sup> Const. of Iran, as amended 1989, art. 19, Constitute Project, <https://perma.cc/KY5A-GYCQ> (unofficial English translation).

<sup>2</sup> Civil Code of Iran art. 9, WIPO, <https://perma.cc/N4JU-JKKC> (unofficial English translation); Const. arts. 4, 13, 14.

<sup>3</sup> Id. art. 1313.

<sup>4</sup> Id. art. 881 bis.

jurists to make determinations according to their understanding of the law and Islamic criteria.<sup>5</sup> Article 20 of the constitution guarantees equality before the law, but qualifies that this equality is subject to “conformity with Islamic criteria,” which has led to discrimination against certain groups in the application of the law.

Laws such as article 1313 of the Civil Code of Iran, which infers “superiority” in religious faith for the purposes of acceptance and validity of testimony, or article 4 of the constitution, which emphasizes the importance of the dominance of Islam and Muslims in all spheres of public life, can lead to indirect discrimination without mentioning non-Muslims. For instance, the constitution defines a judge or justice as a wise person who rules according to the Qur’an and Islamic jurisprudence.<sup>6</sup> When applied, this provision would indirectly eliminate non-Muslims from becoming judges. Similarly, article 73 of the constitution states that judges must use Islamic interpretations to decipher laws when necessary.<sup>7</sup>

## II. Individual Legal Provisions concerning Religious Minorities

Iranian law sometimes juxtaposes provisions that grant rights to religious minorities and provisions that discriminate against them; both types of provisions may appear in the same article or in consecutive articles. Such discriminatory sections or criteria undermine the egalitarian language in the law and the delivery of basic human rights. Thus, constitutional provisions with language favoring religious minorities are often not fully realized, leading to unequal treatment and a lack of opportunities for religious minorities in the country,<sup>8</sup> which affects all non-Muslims but mostly non-Muslims from faiths that are not recognized by the constitution, or those who convert from Islam or speak against the Islamic Republic’s interpretations of Islam.

### A. Constitutional Provisions

The Constitution of Iran obligates the government to eliminate unjust discrimination, create equal opportunities for all citizens, and ensure universal rights for all women and men, establishing equality for all people before the law.<sup>9</sup> However, this provision is immediately followed by an article that establishes Islamic criteria as the principal for civil, penal, financial, economic, administrative, cultural, military, political, and all other provisions of the constitution, as well as all other laws and regulations, and declares that Islamic jurists of the Constitutional Council are the judges in this matter.<sup>10</sup> It further provides that all Muslims form a single nation and the government has the duty of formulating its general policies with the aim of bringing about the political, economic, and cultural unity of the Islamic world.<sup>11</sup>

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<sup>5</sup> Const. art. 167.

<sup>6</sup> Id. art. 167.

<sup>7</sup> Id. art. 73.

<sup>8</sup> Maryam Dehkordi, *Blood Money, Inheritance and Property: Religious Discrimination in Iranian Law*, Iran Wire (July 12, 2021), <https://perma.cc/B2N6-67GK>.

<sup>9</sup> Const. art. 3.

<sup>10</sup> Id. art. 4.

<sup>11</sup> Id. art. 11.

### *1. Official Religion*

According to the constitution, the official religion of Iran is Islam and the Twelver Ja'fari school of Shi'a Islamic jurisprudence. Other Islamic schools, including the Hanafi, Shafi'i, Maliki, Hanbali, and Zaydi, are to be accorded full respect, and their followers are free to act in accordance with their own jurisprudence in performing their religious rites. These schools enjoy official status in matters pertaining to religious education, affairs of personal status (marriage, divorce, inheritance, and wills), and related litigation in courts of law. In regions of the country where Muslims following any one of these schools constitute the majority, local regulations, within the bounds of the jurisdiction of local councils, are to be in accordance with the respective school, without infringing upon the rights of the followers of other schools.<sup>12</sup>

### *2. Recognized Religions*

Zoroastrian, Jewish, and Christian Iranians are the only recognized religious minorities, and are free within the limits of the law to perform their religious rites and ceremonies and act according to their own canon in matters of personal affairs and religious education.<sup>13</sup>

### *3. Treatment of Non-Muslim Citizens*

Article 14 of the constitution states that "[t]he government of the Islamic Republic of Iran and all Muslims are duty-bound to treat non-Muslims in conformity with ethical norms and the principles of Islamic justice and equity, and to respect their human rights. This principle applies to all who refrain from engaging in conspiracy or activity against Islam and the Islamic Republic of Iran."<sup>14</sup>

### *4. Application of Political and Cultural Rights to Members of Religious Minorities*

The official language and script of Iran is Persian, or Farsi. Official documents, correspondence, and texts, as well as textbooks, must be in this language and script. However, the use of regional and tribal languages in the press and mass media, and in the teaching of literature in schools, is allowed in addition to Persian.<sup>15</sup>

The formation of parties, societies, political or professional associations, and religious societies, whether pertaining to Islam or to one of the recognized religious minorities, is permitted if they do not violate the principles of independence, freedom, national unity, the criteria of Islam, or the basis of the Islamic Republic. No one may be prevented from participating in the such groups or compelled to participate in them.<sup>16</sup>

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<sup>12</sup> Id. art. 12.

<sup>13</sup> Id. art. 13.

<sup>14</sup> Id. art. 14.

<sup>15</sup> Id. art. 15.

<sup>16</sup> Id. art. 26.

Recognized religious minorities have the right to be represented in the Islamic Consultative Assembly (Majles), Iran's parliament. The constitution established the Majles with 270 members and provided that this number could not increase by more than 20 members every 10 years, considering demographic, political, geographic, and other similar factors. The Zoroastrian and Jewish communities are allowed to elect one representative each, while Assyrian and Chaldean Christians jointly elect one representative, and Armenian Christians in the north and in the south of the country each elect one representative.<sup>17</sup> The five representatives from religious minorities can take the oath of office on their respective holy books.<sup>18</sup>

The Muslim faith is required for being a member of the Guardian Council, an institution established to examine the compatibility of legislation passed by the Majles with Islam. The Guardian Council consists of six Muslim men selected by the supreme leader who are experts in Islamic jurisprudence (*fuqaha'*) and "conscious of the present needs and the issues of the day," and six jurists specializing in different areas of law who are elected by the Majles from among the Muslim jurists nominated by the Head of the Judicial Power.<sup>19</sup>

The president of Iran must also be a Muslim. The constitution states that the president is elected from among religious and political personalities possessing the following qualifications: Iranian origin, Iranian nationality, administrative capacity and resourcefulness, a good past record, trustworthiness and piety, and convinced belief in the fundamental principles of the Islamic Republic of Iran and the official *madhhab* (school of Islamic jurisprudence) of the country (the Twelver Ja'fari school).<sup>20</sup>

## B. Civil Code Provisions

### 1. *Inheritance for Non-Muslims*

According to article 881 bis of the civil code, an unbeliever in Islam (*kafir*) may not inherit from a Muslim, and if there is even one Muslim among the heirs of a deceased unbeliever, the unbelieving heirs cannot inherit even if their class and degree of succession give them priority over the Muslim heir.<sup>21</sup> On December 3, 2022, Directive No. 9000/23767/1000 of the Office of the First Deputy of the Judiciary Branch interpreted this provision to allow the exclusion of constitutionally recognized religious minorities from the meaning of the term *kafir*.<sup>22</sup> Before this

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<sup>17</sup> Id. art. 64.

<sup>18</sup> Id. art. 67.

<sup>19</sup> Id. art. 91.

<sup>20</sup> Id. art. 115.

<sup>21</sup> Civil Code art. 881 bis.

<sup>22</sup> Office of the First Deputy of the Judiciary Branch, Judiciary Branch Directive No. 9000/23767/1000 regarding the Single Article of the Law on Allowing Observance of the Personal Status Principles of Non-Shia Iranians in Courts, Official Gazette of the Islamic Republic of Iran, Dec. 10, 2022, No. 1616, <https://perma.cc/VP75-A5BZ> (in Farsi); Office of the First Deputy of the Judiciary Branch, Amendment to Judiciary Branch Directive No. 9000/23767/1000 regarding the Single Article of the Law on Allowing Observance of the Personal Status Principles of Non-Shia Iranians in Courts, Official Gazette of the Islamic Republic of Iran, Dec. 18, 2022, No. 1618, <https://perma.cc/37CP-7KYZ> (in Farsi).

directive was issued, the discriminatory provisions of article 881 bis of the civil code (as last amended in 1991) had long been applied to all non-Muslims.

## 2. *Value of Testimony Given by a Non-Muslim*

According to the civil code, a witness must possess maturity, sanity, justice, faith, and legitimate descent,<sup>23</sup> which Iranian Muslim jurists interpret as meaning being of the Muslim faith. In practice this interpretation has prevented non-Muslims from testifying in most cases.

## C. Islamic Penal Code Provisions

### 1. *National Security Offenses*

The Islamic Penal Code of Iran uses broad and vaguely worded national security laws to criminalize the exercise of fundamental rights and retain punishments that amount to torture or cruel and degrading treatment, such as stoning, flogging, and amputation. The code also contains discriminatory provisions against religious minorities related to the implementation of punishments, retribution, and compensation, as well as the use of evidence in court.<sup>24</sup>

### 2. *Punishments in the Iranian Penal Code*

Punishments provided in the Iranian Penal Code are divided into four categories: *Hadd*, *Qisas*, *Diya*, and *Ta'zir*. *Hadd* is a punishment whose grounds, type, amount, and conditions of execution are specified in Shari'a.<sup>25</sup> *Qisas* is the main punishment for intentional bodily crimes against life, limbs, and abilities, and which is applied in accordance with Book One of the penal code. *Diya* may be a fixed or unfixed monetary amount under Shari'a that is determined by law and imposed for unintentional bodily crimes against life, limbs, and abilities, or for intentional crimes to which *qisas* is not applicable. *Ta'zir* is a punishment that does not fall under the categories of *hadd*, *qisas*, or *diya* and is determined by law for the commission of acts prohibited under Shari'a or for violation of state rules. The type, amount, and conditions of execution, as well as mitigation, suspension, cancellation, and other relevant rules of *ta'zir* crimes, are determined by law.<sup>26</sup>

### 3. *Blood Money (Diya)*

Historically, Iranian law, influenced by interpretations from Islamic jurists, has exhibited significant religious and gender-based discrimination, including in the context of blood money (*diya*), where the law established clear and implied distinctions among Muslims; constitutionally recognized non-Muslims; unrecognized non-Muslims; and men, women, and transgender

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<sup>23</sup> Id. art. 1313.

<sup>24</sup> Faraz Sanei, *Codifying Repression: An Assessment of Iran's New Penal Code*, Human Rights Watch (HRW) (Aug. 28, 2012), <https://perma.cc/QW4T-9V2F>.

<sup>25</sup> Abdullahi Ahmed An-Nai'm & Tynan Power, *Sharia Law*, Muslims for Progressive Values, <https://perma.cc/M3H7-6Z4M>.

<sup>26</sup> Islamic Penal Code of Iran, Books I-II, 1392 [2013], arts. 14–18, <https://perma.cc/K58F-9KSY>.



individuals. Before 2003, constitutionally recognized non-Muslims were openly awarded lower *diya* amounts than Muslims in accordance with the implied language of the law and Islamic interpretations of it, though the exact fraction of this difference varied due to diverse interpretations of Islamic jurisprudence. In 2003, an amendment was introduced to the then-existing article 297 of the penal code, explicitly providing for equality between constitutionally recognized non-Muslims and Muslims with regard to *diya*.<sup>27</sup> In 2013, a revised version of the penal code (currently in force), added a separate new article 554, replacing the 2003 amendment and unequivocally mandating equal *diya* amounts for both Muslims and constitutionally recognized non-Muslims.<sup>28</sup>

Despite these changes, deeply rooted discrimination on the basis of religion and gender remains in Iranian law. As an example, article 550 of the current (2013) code (reflecting article 300 of the previous code) and article 551 of the current code (relating to transgender individuals) set the *diya* amount for both women and transgender individuals at half of that for men. Notably, the article 551 provision on transgender individuals was added in 2013 to the revised code; previously, only women and men were mentioned. This discriminatory difference in *diya* amounts in turn affects provisions in article 382 of the 2013 code regarding *diya* in homicide cases:

- Article 382 and Muslim perpetrators: Article 382 of the 2013 penal code specifies that if a Muslim man murders a Muslim woman, he faces the death penalty. However, the difference between the *diya* for a Muslim man and a Muslim woman must be paid to the next of kin of *the Muslim male perpetrator* before the execution of the death sentence.
- Article 382 and non-Muslim perpetrators: Article 382 exempts the payment of the *diya* difference to the next of kin of *the non-Muslim male perpetrator* when he is responsible for the murder of a Muslim woman, essentially stating that no additional compensation is required in such cases.<sup>29</sup>

In 2014, a consultancy opinion of the Central Legal Consultancy Office of the Judiciary Branch clarified that regardless of whether the male perpetrator of the murder of a Muslim woman is a Muslim or a constitutionally recognized non-Muslim, half of the male *diya* (for the difference between the women's and men's *diya* under the law) must be paid to the next of kin of the male perpetrator before the execution of the death sentence. The opinion indicated that the rationale was based on article 554 of the new (2013) penal code, which equalized the *diya* for Muslims and constitutionally recognized non-Muslims. Despite this interpretation, the discriminatory language of article 382 against non-Muslims remains unaltered in today's penal code, accompanied by an annotation reflecting the consultative opinion.<sup>30</sup>

<sup>27</sup> Penal Code, Book III, 1370 [1991], as amended 1382 [2003], art. 297, <https://perma.cc/B6W8-YHPZ> (in Farsi).

<sup>28</sup> Penal Code, Book IV, 1392 [2013], art. 554, <https://perma.cc/GMH7-9ZKW> (in Farsi).

<sup>29</sup> Penal Code, Book III, 1392 [2013], art. 382, <https://perma.cc/Z369-M8YZ> (in Farsi).

<sup>30</sup> Central Legal Consultancy Office, Judiciary Branch, Apr. 15, 2014, Reference No. 83/93/7, Official Gazette of the Islamic Republic of Iran, Sept. 10, 2014, No. 20248, <https://perma.cc/K9LC-YXFY> (in Farsi).

#### 4. Same-Sex Relationships

Articles 234–236 of the penal code codify and criminalize same-sex relationships. In the case of gay intercourse, the penalty is a death sentence for both parties if the insertive party has engaged in intercourse by using force or coercion, or if he is married and could have a sexual relationship with his wife; otherwise, he is to be sentenced to 100 lashes. The punishment for the receptive party is the death penalty, unless he engaged in the act due to force or coercion by the insertive party. If the insertive party is a non-Muslim and the receptive party is a Muslim, the punishment for the insertive party is the death penalty, regardless of any of the conditions stated above. Article 240 of the penal code sets the maximum penalty for lesbian relations at 100 lashes for both parties regardless of any conditions—whether the parties are Muslims or non-Muslims, or whether there has been coercion or force.

#### 5. Adultery

According to articles 250–251 of the penal code, the *hadd* punishment for untruthfully accusing someone of a same-sex relationship (sexual acts) or adultery is 80 lashes. The defamatory act results in the *hadd* punishment for the offender when the person who is the subject of the defamation is specified, pubescent, sane, and Muslim, and it is not evident whether they engaged in a same-sex relationship or adultery. If the person who is the subject of the defamation is unspecified, nonpubescent, insane, or non-Muslim, the offender would be sentenced to 31 to 74 lashes of *ta'zir* flogging of the sixth grade.

#### 6. Zina Punishment

According to article 224 of the penal code, the crime of *zina*, which is unauthorized premarital sex, is punished by the death penalty if committed between blood relatives who are prohibited from marrying, with a stepmother, by a non-Muslim man with a Muslim woman, or by coercion or with application of force.

#### 7. Alcohol Consumption

According to articles 265–266 of the penal code, the punishment for consumption of intoxicants is 80 lashes. A non-Muslim is to be sentenced to this punishment only if they publicly consumed the intoxicants. If a drunk non-Muslim person appears in a public place, even if alcohol was not consumed in public, the offender is to be sentenced to the punishment prescribed for committing a sinful act openly, which is imprisonment for a period of 10 days to two months or up to 74 lashes.<sup>31</sup>

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<sup>31</sup> Penal Code, Book V, 1392 [2013], art. 638 (864), <https://perma.cc/K286-PNTF> (in Farsi). The Iranian Penal Code comprises five books, each covering different kinds of crimes and punishments. In the 2013 version of the code, Books I–IV underwent revisions with changed article numbers. In contrast, Book V remained largely unaltered, retaining its original articles and numbering. This has resulted in varying practices in publishing the code, with some versions using Book V's original article numbers and others continuing the sequence from the current Book IV. In some cases, both numbers are presented, with the old number followed by the new number in parentheses. Consequently, Book V spans articles numbered 498 (729) to 785 (1008). For example, article 638 (864) in Book V bears both its original number 638 and the new number 864, following the sequence from the current Book IV in the 2013 code. These discrepancies in numbering practices can lead to errors, as identical

### 8. *Penalties for Homicide*

If a non-Muslim, regardless of their religion, intentionally kills a Muslim, a member of a constitutionally recognized religious minority, or a non-Muslim otherwise protected within the borders of Iran, this person is to be sentenced to death.<sup>32</sup> If a Muslim, a member of a recognized religious minority, or a person protected within the borders of Iran commits a crime against a non-Muslim who is not one of these specified groups, this crime would be reclassified under Book V of the penal code, and the perpetrator would be subject to a lighter punishment.

### 9. *Usurious Transactions*

Usury is forbidden in Islam.<sup>33</sup> The penal code provides for discriminatory behavior against non-Muslims in a provision that exempts Muslims from certain penalties when they are involved in usurious transactions with non-Muslims but does not offer a reciprocal exemption for non-Muslims receiving usury from Muslims.<sup>34</sup> Additionally, the code fails to safeguard the property rights of non-Muslims in cases where the owner is unknown, leading to the transfer of the non-Muslim's property to the supreme leader without considering the owner's religion.<sup>35</sup>

## III. Personal Status and Relations Regulations

According to article 13 of the constitution, the personal relations and status of constitutionally recognized religious minorities in Iran must be governed according to the accepted and common principles of their respective religions. This includes various family matters, including child adoption. The application of rules accepted by religious minorities is allowed in legal proceedings and daily practices as long as a specific case does not cause "public disorder." This principle is further developed by articles 6 and 7 of the civil code, which provide for regulating the personal relations and status of foreign nationals residing in Iran under laws of their country of origin to the extent that is provided by bilateral treaties, international conventions, and rules of reciprocity.<sup>36</sup>

Article 13 of the constitution is supported by statutory and regulatory acts addressing the personal relations and status of individuals of each of the constitutionally recognized minority religions and various recognized minority sects. For instance, detailed legislation for the personal relations of Zoroastrians includes the full right of Zoroastrians to adoption and to the Zoroastrian tradition of "bridging" to pass their inheritance to an adopted or to a bridged Zoroastrian child,

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article numbers may appear for different articles, one in Book III or IV and another in Book V, addressing distinct subjects.

<sup>32</sup> Penal Code, Book III, 1392 [2013], art. 310, <https://perma.cc/Z369-M8YZ> (in Farsi).

<sup>33</sup> *Usury (Ribaa)*, New Muslim Guide, <https://perma.cc/RDT8-MY3B>.

<sup>34</sup> Penal Code, Book V, art. 595 (826), <https://perma.cc/K286-PNTF>. The article number, 595 (826), in Book V of the Penal Code provides both the older, pre-2013 article number and the new number enclosed in parentheses, aligning with the 2013 code's sequence (e.g., Book IV ends at article 728, and Book V starts at 498 (729)).

<sup>35</sup> *Id.*

<sup>36</sup> Civil Code arts. 6, 7.

with the difference that an adopted Zoroastrian child can inherit from both biological and adoptive parents.<sup>37</sup> Zoroastrians without biological children can declare their wish in their last will and testament to use bridging to enable the bridged person to inherit from them as their own child. Otherwise, according to Iranian law, a Zoroastrian person's property would pass to their next of kin in order of availability, or would be passed to their choice of charity, or to the local Zoroastrian organization at the place of their residence or, if such an organization is unavailable locally, to the Zoroastrian organization of Tehran. A separate law for non-Shi'a persons grants authority to the Iranian courts to base the adoption-related proceedings of non-Shi'a persons on the relevant provisions of the respective adoptive mother's or adoptive father's religion and the accepted practices of their religion.<sup>38</sup>

Additionally, an article regarding requirements for fostering a child who is poorly supervised, neglected, or orphaned eliminates non-Muslims from constitutionally unrecognized religious minorities from fostering or adopting children, and indicates a need for religious compatibility between the fostering parents and the child, except if the qualified court decides that it would be in the best interest of a non-Muslim child to place them with Muslim foster parents.<sup>39</sup> The legislator specified that guardians cannot choose or appoint non-Muslim guardians for Muslim children.<sup>40</sup>

#### IV. Legal Status of Unrecognized Religious Minorities and Members of Other Minority Communities

Article 23 of the constitution contains provisions to protect freedom of thought, religion, and belief, stating that "no one may be molested or taken to task simply for holding a certain belief." However, international human rights organizations report that the Iranian regime's discriminatory treatment of unrecognized religious minorities, its stance on apostasy, and the government's misuse of legislation to suppress dissent clearly violate human rights.<sup>41</sup>

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<sup>37</sup> The practice of bridging stemmed from the belief in ancient Zoroastrianism that those without biological children would be unable to attain immortality. Consequently, adoption by individuals lacking biological offspring played a pivotal role in this belief by bridging the gap to the afterlife, guaranteeing the perpetuation of family lines and religious customs.

<sup>38</sup> Law of July 22, 1933 on Allowing Observance of the Personal Status Principles of Non-Shi'a Iranians in Courts, single art.), <https://perma.cc/F2MU-AGDS> (in Farsi); Law of June 24, 1993 on Proceedings related to the Personal Status and Religious Teachings of Zoroastrian, Christian, and Jewish Iranians, single art., <https://perma.cc/35L5-XLJA> (in Farsi); Executive Regulations of the Personal Status Laws of Zoroastrians of Iran, May 17, 2007, arts. 44, 56, Official Gazette of the Islamic Republic of Iran, Dec. 6, 2007, No. 18285, <https://perma.cc/F7BB-JWV>.

<sup>39</sup> Law of September 22, 2013 on the Protection of Poorly Supervised, Neglected or Orphaned Children and Teenagers, art. 6, <https://perma.cc/6JX9-6ULC> (in Farsi). Further analysis of the intentions of the legislator regarding religious compatibility reveals that the same rule applies to the guardianship of Muslim children, stating that a *sarparast* (guardian) of a Muslim child cannot designate a non-Muslim guardian or transfer guardianship to a non-Muslim. Civil Code art. 1192.

<sup>40</sup> Civil Code arts. 1180-1194, 1218-1247.

<sup>41</sup> *World Report 2022: Iran – Events of 2021*, HRW, <https://perma.cc/9JDG-R7VP>; *World Report 2021: Iran – Events of 2020*, HRW, <https://perma.cc/LV32-S85B>; Press Release, United Nations Human Rights Office of the High Commissioner (OHCHR), Iran: UN Experts Alarmed by Escalating Religious Persecution (Aug. 22, 2022),

## A. Discrimination against Unrecognized Religious Minorities

Examples of the Iranian government's discriminatory practices against unrecognized religious minorities extend to the arrest and prosecution of Baha'is on vague national security charges and, subsequently, their imprisonment and the closure of their businesses. Reportedly, they are systematically denied registration at public universities because of their faith. Similarly, Christian converts from Islam face charges of propaganda against the state for practicing their faith and engaging with missionaries. Sunni Muslims and ethnic minorities, such as Azeris, Kurds, Arabs, and Baluchs, also experience restrictions on their cultural and political activities, with minority activists facing arbitrary arrests and unfair trials.<sup>42</sup>

## B. Criminalization of Dissent and Apostasy

Apostasy, the act of converting from Islam to another faith, carries severe consequences in Iran. Article 167 of the constitution and article 220 of the penal code address punishments, which are not explicitly codified but may carry the death penalty on the basis of Islamic jurisprudence. An example is the case of Yousef Nadarkhani, a pastor who faced the death penalty for converting from Islam to Christianity and for charges of evangelization. His sentence was later overturned. Expressing dissent against the Iranian regime's interpretation of Islam or opposing certain laws is an offense against Islam and the Islamic Republic. Dissenters are often charged with committing crimes against national security, insulting the supreme leader, and "waging war against God" (*mohaarebeh*). The regime exploits overly broad articles of the penal code, including those related to propaganda against the state and establishment of or membership in "disruptive groups," to prosecute human rights and religious minority activists.<sup>43</sup>

## C. Blasphemy Laws and Freedom of Speech

As previously mentioned, Iran's constitution contains provisions to protect freedom of thought, religion, and belief, but it also qualifies that this freedom must conform to Islamic criteria. Blasphemy laws in Iran, particularly articles 262 and 513 of the penal code, are used to punish those who insult sacred religious values or Prophet Muhammad, with potential sentences ranging from imprisonment to the death penalty. Criticizing or expressing dissenting views regarding religion, including through online platforms, and promoting views contrary to state

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<https://perma.cc/3AAJ-AVZ2>; Iran Human Rights Documentation Center, *Apostasy in the Islamic Republic of Iran* (Sept. 25, 2014), <https://perma.cc/2BMC-DKS4>; Sanei, *supra* note 24; Dehkordi, *supra* note 8.

<sup>42</sup> *World Report 2022: Iran – Events of 2021*, *supra* note 41; *World Report 2021: Iran – Events of 2020*, *supra* note 41; OHCHR, *supra* note 41; Iran Human Rights Documentation Center, *supra* note 41; Sanei, *supra* note 24; Dehkordi, *supra* note 8.

<sup>43</sup> *World Report 2022: Iran – Events of 2021*, *supra* note 41; *World Report 2021: Iran – Events of 2020*, *supra* note 41; OHCHR, *supra* note 41; Iran Human Rights Documentation Center, *supra* note 41; Sanei, *supra* note 24; Dehkordi, *supra* note 8. Chapter II of Book V of the penal code, particularly articles 262, 513, and 514, address crimes of "insulting sacred religious values" and "criminal attempt on national authorities." These articles set the punishments for insulting the sacred values of Islam, the prophets, the twelve Shi'a imams, and the supreme leader, which can range from six months' to two years' imprisonment or one year to five years' imprisonment, depending on the case. "Speaking disparagingly of Prophet Muhammad" is punishable by the death penalty.

religious values can be categorized as insulting Islam or promoting atheism, leading to severe consequences, including the death penalty.<sup>44</sup>

#### **D. International Obligations**

Iran's actions concerning freedom of thought, conscience, and religion, as well as the right to life, stand in violation of international obligations under the Universal Declaration of Human Rights (UDHR) and the International Covenant on Civil and Political Rights (ICCPR). Iran has ratified both the UDHR and the ICCPR, making its actions in these areas subject to international scrutiny.<sup>45</sup>

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<sup>44</sup> Elwely Elwelly, *Iran Hangs Two Men for Blasphemy*, Reuters (May 8, 2023), <https://perma.cc/CA6X-XDHC>.

<sup>45</sup> *World Report 2022: Iran – Events of 2021*, supra note 41; *World Report 2021: Iran – Events of 2020*, supra note 41; OHCHR, supra note 41; Iran Human Rights Documentation Center, supra note 41; Sanei, supra note 24; Dehkordi, supra note 8.